

**CHAPTER xxi.**

An Act to further extend the period for taking lands and for the construction of street works and a tramway authorised by the Dover Corporation Act 1901 and for other purposes. A.D. 1911.
[2nd June 1911.]

WHEREAS the borough of Dover is a municipal borough under the government of the mayor aldermen and burgesses of the borough (in this Act referred to respectively as "the borough" and "the Corporation"):

And whereas by the Dover Corporation Act 1901 (in this Act referred to as "the Act of 1901") the Corporation were authorised to construct the street works in the borough with a tramway upon Street Work No. 1 authorised by that Act and the time limited for the purchase of the lands for and the completion of the street works authorised by the Act of 1901 would have expired in 1906 and 1908 respectively but were subsequently extended under the provisions of the Dover Corporation Act 1906:

And whereas by the Dover Corporation Act 1906 (in this Act referred to as "the Act of 1906") the time limited by the Act of 1901 for the compulsory purchase of lands for the street works authorised by the Act of 1901 was extended to five years from the passing of the Act of 1906 and the time for the completion of such street works was extended to seven years from the passing of the Act of 1906 and the time for the construction of the tramway authorised by the same Act of 1901 was extended to three years from the completion of the Street Work No. 1 authorised by the said Act of 1901:

And whereas it is expedient that the period for the compulsory purchase of lands for and the completion of the works

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And whereas the purposes of this Act cannot be effected without the authority of Parliament:

And whereas an absolute majority of the whole number of the council at a meeting held on the twenty-ninth day of November one thousand nine hundred and ten after ten clear days' notice by public advertisement of such meeting and of the purpose thereof in the Dover and County Chronicle a local newspaper published and circulating in the borough such notice being in addition to the ordinary notices required for summoning such meeting resolved that the expense in relation to promoting the Bill for this Act should be charged on the district fund and general district rate:

And whereas the said resolution was published twice in the said Dover and County Chronicle a local newspaper published and circulating in the borough and has received the approval of the Local Government Board:

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the council at a further special meeting held in pursuance of a similar notice on the thirty-first day of January one thousand nine hundred and eleven being not less than fourteen days after the deposit of the Bill in Parliament:

And whereas in relation to the promotion of the Bill for this Act the requirements contained in the First Schedule to the Borough Funds Act 1903 have been observed:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

Short title.

1. This Act may be cited as the Dover Corporation Act 1911.

Incorporation of Acts.

2. The provisions of the Lands Clauses Acts (except section 127 of the Lands Clauses Consolidation Act 1845) so far as they are applicable for the purposes and are not inconsistent with the provisions of this Act are hereby incorporated with and form part of this Act.

Interpretation.

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated

herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Act unless the subject or context otherwise requires—

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The expression "the Corporation" means the mayor aldermen and burgesses of the borough of Dover;

The expression "the borough" means the borough of Dover;

The expressions "the district fund" and "the general district rate" mean respectively the district fund and the general district rate of the borough;

The expression "the Act of 1901" means the Dover Corporation Act 1901;

The expression "the Act of 1906" means the Dover Corporation Act 1906.

4. The period limited by section 21 of the Act of 1901 for the compulsory purchase of lands for the street works authorised by that Act as extended by section 4 (1) of the Act of 1906 is hereby further extended to the expiration of five years from the passing of this Act and section 21 of the Act of 1901 and section 4 of the Act of 1906 shall be read and have effect and the powers conferred by those sections are by this Act extended accordingly.

Further extension of time for purchase of lands for works under Act of 1901.

5. The period limited by section 7 of the Act of 1901 for the completion of the street works authorised by that Act as extended by section 4 (2) of the Act of 1906 is hereby further extended to the expiration of seven years from the passing of this Act and the period limited by section 28 of the Act of 1901 for the completion of the tramway authorised by that Act as extended by section 4 (2) of the Act of 1906 is hereby further extended to three years from the completion of the Street Work No. 1 authorised by the Act of 1901 and those sections shall be read and have effect and the powers conferred by those sections shall be extended accordingly.

Further extension of time for completion of works under Act of 1901.

6. The Corporation may from time to time independently of any other borrowing power borrow at interest the sum requisite as hereinafter provided for paying the costs and expenses of this Act.

Power to borrow.

In order to secure the repayment of the moneys borrowed under this section and the payment of interest thereon the Corporation may mortgage or charge the district fund and general district rate.

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Period for
discharge of
loans.

7. The Corporation shall pay off all moneys borrowed by them under this Act within the period (in section 49 of the Act of 1901 incorporated with this Act referred to as "the prescribed period") of five years from the passing of this Act.

Incorporation of financial sections from Act of 1901.

8. The following sections of the Act of 1901 are incorporated with this Act and shall extend and apply with regard to moneys borrowed under this Act as if those sections with the necessary modifications were set out in this Act (namely):—

Section 45 Certain regulations of Public Health Act 1875 as to borrowing not to apply.

Section 46 Provisions of Public Health Act 1875 as to mortgages.

Section 48 Mode of payment off of money borrowed.

Section 49 Sinking fund.

Section 50 Protection of lender from inquiry.

Section 51 Corporation not to regard trusts.

Section 54 Return respecting sinking fund to Local Government Board.

Use of tramway posts by Postmaster-General.

9.—(1) It shall be lawful for the Postmaster-General in any street or public road or part of a street or public road in which he is authorised to place a telegraph to use for the support of such telegraph any posts and standards (with the brackets connected therewith) erected in any such street or public road by the Corporation in connection with the tramway authorised by the Act of 1901 and to lengthen adapt alter and replace such posts standards and brackets for the purpose of supporting any telegraph and from time to time to alter any telegraph so supported subject to the following conditions:—

(A) In placing maintaining or altering such telegraph no obstruction shall be caused to the traffic along or the working or user of the tramway:

(B) The Postmaster-General shall give to the Corporation not less than twenty-eight days' notice in writing of his intention to exercise any of the powers of this section and shall in such notice specify the streets or public roads or parts of streets or public roads along which it is proposed to exercise such powers and the manner in which it is proposed to use the

posts standards and brackets and also the maximum strain and the nature and direction of such strain. Any difference as to any matter referred to in such notice shall be determined as hereinafter provided:

- (c) Unless otherwise agreed between the Postmaster-General and the Corporation the Postmaster-General shall pay the expense of lengthening adapting altering or replacing under the provisions of this section any post standard or bracket and the expenses of providing and maintaining any appliances or making any alteration rendered necessary in consequence of the exercise of the powers of this section for the protection of the public or the unobstructed working or user of the tramway or to prevent injurious affection of the Postmaster-General's telegraphs or any telegraphic or telephonic line or electrical apparatus of the Corporation or by any regulations which may from time to time be made by the Board of Trade arising through the exercise by the Postmaster-General of the powers conferred by this section:
- (d) Unless otherwise agreed or in case of difference determined as hereinafter provided all telegraphs shall be attached to the posts standards or brackets below the level of the trolley wires and on the side of such posts or standards farthest from the trolley wires. Any difference as to the conditions of attachment shall be determined as hereinafter provided:
- (e) Unless otherwise agreed no telegraph shall be attached to any post or standard placed in or near the centre of any street or public road:
- (f) The Postmaster-General shall cause all attachments to posts standards or brackets used by him under the powers of this section to be from time to time inspected so as to satisfy himself that the said attachments are in a proper state of condition and repair:
- (g) The Postmaster-General shall make good to the Corporation and shall indemnify them against any loss damage or expense which may be incurred by them through or in consequence of the exercise by the Postmaster-General of the powers conferred upon him by this section unless such loss damage or

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expense be caused by or arise from gross negligence on the part of the Corporation their officers or servants:

- (H) The Postmaster-General shall make such reasonable contribution to the original cost of providing and placing any post standard or bracket used by him and also to the annual cost of the maintenance and renewal of any such post standard or bracket as having regard to the respective interests of the Corporation and the Postmaster-General in the use of the post standard or bracket and to all the circumstances of each case may be agreed upon between the Postmaster-General and the Corporation or failing agreement determined as hereinafter provided:
- (I) The Corporation shall not be liable for any interference with or damage or injury to the telegraphs of the Postmaster-General arising through the exercise by the Postmaster-General of the powers conferred by this section and caused by the maintaining and working of the tramway or by any accident arising thereon or by the authorised use by the Corporation of electrical energy unless such interference damage or injury be caused by gross negligence on the part of the Corporation their officers or servants:
- (J) If it shall become necessary or expedient to alter the position of or remove any post standard or bracket the Postmaster-General shall upon receiving twenty-eight days' notice thereof at his own expense alter or remove the telegraph supported thereby or at his option retain the post standard or bracket and pay the Corporation the value of the same. Provided that if the Corporation or the body having the control of the street or public road object to the retention of the post standard or bracket by the Postmaster-General a difference shall be deemed to have arisen and shall be determined as hereinafter provided.

(2) Nothing in this section contained shall prevent the Corporation from using their posts standards or brackets for the support of any of their electric wires and apparatus whether in connection with their tramway or other municipal undertakings or shall take away any existing right of the Corporation of permitting the use by any company or person of their posts

standards or brackets in connection with the lighting of the streets or otherwise Provided that any difference between the Postmaster-General and such company or person in relation to the use of the posts standards or brackets by the Postmaster-General and such company or person respectively shall be determined as hereinafter provided. A.D. 1911.

(3) All differences arising under this section shall be determined in manner provided by sections 4 and 5 of the Telegraph Act 1878 for the settlement of differences relating to a street or public road.

(4) In this section—

The expression “the Corporation” includes their lessees;

The expression “telegraph” has the same meaning as in the Telegraph Act 1869;

Other expressions have the same meaning as in the Telegraph Act 1878.

10. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the district fund and general district rate or out of moneys to be borrowed under this Act. Costs of Act.

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